

Legislation Writing + Research

Reminders & Agenda

- Judge Training Clinic, 9/24, 9 AM to 11:30 @RR Library
- Field trip forms due 10/7!
- Registration: Past Due
- Schoology **Course** Code: K8Z6 - FJBQ - 5CJMT
 - Be sure to join if you didn't get a chance to last time!
- Show of hands - Who is planning on competing WACFL 1
- Understanding Civics & Writing Legislation

Understanding Civics

Having a grasp of civics will help you form the foundation for substantive legislation and arguments on issues. The Constitution is the supreme law of the land, so understanding its articles and amendments is important. Start by investigating the central powers of Congress, which dictate the lawmaking jurisdiction of the U.S. Congress, something you must bear in mind before writing legislation and forming arguments. Some examples include, but are not limited to:

- Originate taxation and impeachment
- Regulate Commerce and Banking
- Fund Government Agencies
- Senate can approve treaties (*failure of the Paris Climate Accord*)

Since the Executive Branch runs most agencies that enforce federal laws, understanding those helps. While foreign affairs often fall under the jurisdiction of the Executive Branch, funding efforts such as USAID can have an impact on the success or failure of United States involvement in other countries, and therefore, can be framed as a bill.

Understanding Civics Pt. 2

When considering reasons to support (**affirm**) or oppose (**negate**) legislation, it is important to recognize the limits of lawmaking power of Congress, and the dynamic relationship that Congress has with the other branches of government and/or municipalities. **Remember: you are debating bills as though you are the real U.S. Congress.**

Congress can also grant and take away funding from states to incentivize them to pass policies Congress doesn't have jurisdiction over. For example, if Congress wanted each state to mandate vaccines for public school children, they could either incentivize states to pass laws mandating vaccines by promising an extra 2% in federal education funding if they did, or by threatening to take away 15% of federal infrastructure funding if they didn't. When writing legislation, consider this leverage that Congress holds.

Likewise, if Congress passes a law that the states must carry out, such as a bill mandating replacing old lead pipes in every state, Congress must allocate money to the states to carry out the law. This is known as a **funded mandate**. If the Congress passes a law that the executive branch (for example like the Department of Defense or the Department of Justice) has to implement, Congress can either allocate extra money to those departments in the bill or expect them to use their pre-existing budget to carry out the new law.

Understanding Civics Pt. 3

When drafting legislation, it is important that you are aware of some important government agencies and their functions.

Environmental Protection Agency (EPA): Develops and enforces regulations to protect human health and the environment, addressing issues such as air and water quality, hazardous waste, and pollution prevention.

Department of Education (ED): Develops and implements policies related to federal funding, programs, and initiatives in education, including K-12 schools, higher education, and vocational training.

Department of Health and Human Services (HHS): Oversees and administers various health and social service programs, including Medicare, Medicaid, public health, medical research, and disease prevention.

Department of Defense (DOD): The DOD is responsible for the defense and security of the United States. It oversees the armed forces, including the Army, Navy, Air Force, Marine Corps, and Space Force, and manages military operations, intelligence, and national security strategies.

Understanding Civics Pt. 3.5

Department of Transportation (DOT): The DOT is responsible for ensuring a safe, efficient, and accessible transportation system in the United States. It oversees various modes of transportation, including highways, aviation, railroads, maritime transportation, and pipelines.

Department of Energy (DOE): The DOE is involved in the development and implementation of energy policies and programs in the United States. It promotes research and development in areas such as renewable energy, nuclear power, energy efficiency, and the security of the nation's energy infrastructure.

Internal Revenue Service (IRS): The IRS is the agency responsible for enforcing and administering the internal revenue laws of the United States. Its main function is to collect taxes, process tax returns, and provide taxpayer assistance, ensuring compliance with federal tax laws.

Legislation: Bills & Resolutions

Legislation

Legislation is the heart of Congressional Debate. It is what competitors debate, spending hours on research and writing. The quality of legislation also greatly determines the quality of competition. Must be **timely, unique, & debatable**. If the legislation is interesting, the debate will be lively and debaters will want to participate; if the legislation is poorly written or the subject matter is boring, they will be uninterested and the session can stagnate. There are two types of legislation.

Writing legislation lets you get an **unhindered speech** in. The action proposed should be **feasible**, such that the actual U.S. Congress might debate it. Topics must be **debatable**, meaning substantive argumentation exists on both sides. Write broad and debatable legislation. Meaning, don't promise things that are too broad or unattainable. For example, don't resolve to "support women's rights" or something **universally accepted**. Finally, don't write legislation to "not do something" or "continue doing x". Legislation should **change the status quo**.

You are not scored on your legislation and do not receive bonus points for having yours debated. That being said, you still do need to bring a decent piece of legislation with you.

Legislation

Write legislation on topics that interest you. Topics for legislation include just about anything that the U.S. Congress might consider: domestic social issues (legalization of drugs or prostitution), economic issues (eliminating the capital gains tax), or foreign policy (enacting stricter sanctions against Iran). Legislation is written by students and submitted to the tournament in advance. There are two types:

- **Bill** – type of legislation that describes the details of how a policy would be enacted, if voted into law. Bills are specific and outline funding, organization of implementation, date of implementation, etc.
- **Resolution** – type of legislation that describes an expression of conviction, or value/belief of Congress, which may urge, request or suggest further action by Congress.

Writing legislation should not take more than an hour. **Please download and type into the provided legislation templates to avoid formatting issues; never type legislation from scratch!**

Types of Legislation: Bill

Bill: Use when proposing something that will become law and that is within the bounds of the powers given to Congress under the Constitution.

Bills operate under the authority granted Congress in the U.S. Constitution. It may impose a restriction, create a new government program or agency, or reallocate money in the federal budget from one program to another.

Whatever the bill does, it must provide the appropriate **enforcement or funding**: if the bill imposes a restriction, it must include a **punishment for a violation** of that restriction and specify who is responsible for enforcement; if the bill creates a new federal program, it must fund that program and assign or create an agency of government to enact the new program.

Remember that a bill must have **national jurisdiction** (i.e., when passed into law, the federal government would have the authority to implement it). Again, Congress only has the powers appointed to it in the Constitution, so make sure that your proposed bill is theoretically possible

Types of Legislation: Bill

The structure of a bill is the most complicated. The first line of every bill should read the same: “**Be it enacted by the Student Congress here assembled that.**” The next line should begin with “**SECTION 1.**” bolded and in caps, followed by the text of the bill that indicates the specific policy being proposed. For example, a bill to abolish the death penalty would begin:

- **SECTION 1.** The death penalty, or capital punishment, shall never be assigned as a punishment for a federal crime.

This briefly outlines the main idea of the bill and identifies the central issue that will be debated. *A bill may answer the who, what, when, where—and most specifically how— but it will never answer “why.” Legislators explain rationale behind bills in speeches, and a solution is implemented can spark deeper, more meaningful debate.* All subsequent sections will begin with the word “Section” and the section number in bold (followed by a period, also in bold) and then the text that signifies what the bill does. Typically, the second section of a bill defines terms or clarifies the meaning of the first section. The subsequent sections identify the source of funding for the legislation (if necessary) and the bureaucratic agency responsible for the enforcement of the legislation. Another section ought to include the date that the law will begin to take effect. Finally, the last section of every bill is the null and void clause. It reads: “**All laws in conflict with this legislation are hereby declared null and void.**”

A Bill to Do X

BE IT ENACTED BY THE CONGRESS HERE ASSEMBLED THAT:

SECTION 1. State the new policy in a brief declarative sentence or in as few sentences as possible.

SECTION 2. Define any ambiguous terms in the first section.

SECTION 3. Name the government agency that will oversee the enforcement of the bill along with the specific enforcement mechanism.

A. Go into further details, if necessary.

B. Go into still further details, if necessary.

SECTION 4. Explain the funding mechanism for the bill, if necessary.

SECTION 5. List the date when the bill will take effect.

SECTION 6. All laws in conflict with this legislation are hereby declared null and void.

*Introduced by
Senator John Smith
X High School*

A Bill to Increase Federal Funding of Education

1 BE IT ENACTED BY THE STUDENT CONGRESS HERE
2 ASSEMBLED THAT:

3 **SECTION 1.** The United States federal government shall
4 increase funding to the states for education
5 by \$100 billion annually.

6 **SECTION 2.** Funding shall be allocated based on the pop-
7 ulation of each state, as determined by the
8 United States Census Bureau.

9 **SECTION 3.** The Department of Education is responsible
10 for the enforcement of this legislation.

11 **SECTION 4.** Funding for this legislation will come from
12 a .5% income tax increase on those making
13 above \$1 million annually.

14 **SECTION 5.** This legislation shall take effect at the begin-
15 ning of the fiscal year 2013.

16 **SECTION 6.** All laws in conflict with this legislation are
17 hereby declared null and void.

*Introduced by
Senator Ben Berkman
Northwestern University*

Types of Legislation: Resolution

Resolution: Use when proposing something that will express Congress's opinion on passage but not carry any binding force. It need not be within Congress's designated powers.

A resolution is an expression of Congress's opinion about a particular subject or issue. A resolution does not carry the force of law; unlike a bill, it does not produce tangible changes in the way government or citizens operate.

Consequently, resolutions should be written only when the author wants to tackle an issue over which Congress **has no authority**. Resolutions allow a broader range of subjects for Congress to discuss, but, because they only express opinions and do not require a plan or implementation, they may not engender substantive debate.

Because Congress lacks authority over most **foreign policy issues**, resolutions most commonly consider the way the United States should tackle problems in other countries.

Types of Legislation: Resolution

Because a resolution is merely an expression of opinion, it does not require the specifics that a bill does. A resolution has two basic elements: “**whereas**” clauses and “**resolved**” clauses. Whereas clauses give reasons for the resolution’s existence.

- For example, if there were a resolution condemning the Chinese government, a whereas clause might read, “WHEREAS, the Chinese government has committed numerous human rights violations against its citizens.” Each whereas clause is followed by a semicolon, and the word “and.” So, the above whereas clause would read: “WHEREAS, the Chinese government has committed numerous human rights violations against its citizens; and.” This leads into the next whereas clause. Each resolution should have **at least three** whereas clauses before moving into the resolved clauses.
- The resolved clause states **the precise opinion** that Congress is expressing. In the China example, the resolved clause might read, “RESOLVED, by the Congress here assembled that the Chinese government be condemned.”
- If the author wishes to express **more than one opinion** in the same resolution, she can add an additional resolved clause by writing, on a new line, “FURTHER RESOLVED, that (insert additional language here).” Note that the final whereas clause before the resolved clauses ends differently. Instead of the “and” at the end of the whereas clause, the author writes “now, therefore, be it” and then moves into the first resolved clause on the next line.

A Resolution to Do X

WHEREAS, State the current problem (one brief sentence); and

WHEREAS, Describe the scope of the problem cited in the first whereas clause (this clause needs to flow logically from the first) and the inherent need for a solution; and

WHEREAS, Explain the impact of and harms perpetuated by the current problem (once again, the clause needs to flow in a logical sequence); and

WHEREAS, Use additional “whereas” clauses to elaborate the rationale for the solution to the problem; now, therefore, be it

RESOLVED, That the Student Congress here assembled make the following recommendation for solution (a call to action); and, be it

FURTHER RESOLVED, that (this is an optional additional recommendation; if not used, end the previous “resolved” clause with a period.

*Introduced by
Senator John Smith
X High School*

A Resolution to Condemn the Chinese Government

1 **WHEREAS,** the Chinese government has committed
2 numerous human rights violations; and

3 **WHEREAS,** thousands of Uighurs have had their voices
4 silenced by the authoritarian Communist
5 Party in China; and

6 **WHEREAS,** such human rights violations are anti-
7 thetical to the freedom that the United States
8 espouses; and

9 **WHEREAS,** the U.S. has a moral obligation to help peo-
10 ple around the world become free when their
11 government oppresses them; now, therefore,
12 be it

13 **RESOLVED,** that the Student Congress here assembled
14 condemn the Chinese government.

*Introduced by
Senator Jeffrey Hannan
University of Florida*

Researching Legislation

Research Stage 1

Before each tournament, debaters will receive topics of interest and will have the chance to draft legislation on those topics. Prior to crafting your bill or resolution, it is critical to set aside time for reading extensively on the topic at hand.

The longer you do Congressional Debate the more knowledge on current affairs you gradually accumulate. This is one of the reasons we encourage you to read the news each day is so that you're generally informed on current events and don't have to start from scratch. Regardless, when you get a topic you don't know much about it's important to actually understand the issue first before venturing points. Read a few news articles and look up on the issue. Assuming you truly know nothing on the issue, or want to do a thorough job there's a few things you can do to really get a grasp of the issue.

1. Read the Wikipedia page on the topic. Read the entire page through carefully, do not skim.
2. Read news articles from the NYT and common outlets. Read at least five. Read them completely, don't skim.
3. For a foreign issue, go find the **Council on Foreign Relations Backgrounder page** and read the entire thing carefully. Then go and read any more CFR pages you can find on it carefully.
4. For a domestic issue, check Brookings for reports. Read any you find thoroughly.
5. When applicable, read any studies you find completely. Don't just pull numbers, read over what the study says.
6. If you have any background questions about the issue, go look them up. It only takes a second and finding the answer might prompt you to develop a great point.

When national competitors prep final round legislation, they usually always use this process and spend about 4-5 hours doing background reading before starting their speech research. You'd be surprised at how little many competitors know about an issue. Doing all this background work makes your points excellent and questions sharper. It's worth the time.

Research Stage 1.5

Cut your background cards! Don't rely on memory. By cutting and organizing evidence, you can quickly access and cite specific information.

Example: “The Effects of Climate Change on Coastal Communities” – National Geographic

- “Rising sea levels due to climate change pose significant risks to coastal communities worldwide, leading to increased flooding, erosion, and infrastructure damage. Coastal populations are vulnerable to displacement and economic disruptions.”

After you feel that you have a sufficient understanding of the topic:

- **Explore Different Legislative Approaches & Public Proposals:** Look into different legislative approaches taken by Congress. If unavailable, look into proposals and ideas being discussed in the news. These can include [policy recommendations](#) from think tanks, expert opinions, or articles.
- **Engage with Available Literature:** Take advantage of the vast amount of literature available on the internet. Use this information to learn about the different arguments surrounding the different proposals. **Keep cutting your cards!**
- **Keep Legislation in Mind:** Remember, that the purpose of your research is to help with crafting your legislation. As you gather information, always keep the end goal of crafting impactful bills or resolutions at the forefront of your research.

Research Stage 2

Now that you have developed a solid understanding of the topic and have identified & evaluated different proposals, the question remains: How do I decide which one to choose as the focus of your bill?

- **Consider Impacts and Relevance:** Assess the potential impacts and relevance of each approach. Evaluate how each proposed legislation addresses the problem and consider its potential effectiveness, feasibility, and ethical implications.
- **Evaluate Supporting Evidence:** Examine the supporting evidence for each approach. Look for research, data, and expert opinions that substantiate the effectiveness of specific legislative approaches. Consider the credibility, reliability, and **availability** of the evidence.
- **Seek Guidance:** Seek your mentors' perspectives and advice on selecting an issue for legislation. Remember, we are here to help you.

Lastly, consider the people you will be competing with in your chamber, as it is their opinions that hold the most significance when setting the agenda. While it may not be possible to please everyone, keep their interests of those who will be engaging in the debate foremost in your mind.

If you have
questions, contact

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